

MASTER SERVICES AGREEMENT

Agreement No.: MSA-2026-014

Counterparty: Northwind Logistics Private Limited

Provider: Soft Suave Technologies Private Limited

Effective Date: 14 January 2026

Document Version: v1.0 (Original — see Amendment No. 1 and Amendment No. 2)

Status: Executed

This Master Services Agreement (the "**Agreement**") is entered into as of the Effective Date set out above by and between **Soft Suave Technologies Private Limited**, a company incorporated under the laws of India with its registered office at Chennai, Tamil Nadu ("**Provider**"), and **Northwind Logistics Private Limited**, a company incorporated under the laws of India with its registered office at Bengaluru, Karnataka ("**Client**"). Provider and Client are referred to individually as a "**Party**" and collectively as the "**Parties**".

Section 1. Definitions

Capitalised terms used in this Agreement have the meanings given below. A capitalised term not defined in this Section 1 has the meaning given to it elsewhere in this Agreement or in a Schedule.

1.1 "Affiliate" means, with respect to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with that Party, where "control" means ownership of more than fifty percent (50%) of the voting securities.

1.2 "Business Day" means any day other than a Saturday, a Sunday, or a public holiday listed in the holiday calendar set out in **Schedule C (Holiday Calendar)**. For the avoidance of doubt, where this Agreement specifies a period in Business Days, the holiday calendar in Schedule C governs the computation of that period.

1.3 "Confidential Information" means all non-public information disclosed by one Party to the other, whether orally, in writing, or in any other form, that is designated as confidential at the time of disclosure or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure.

1.4 "Cure Period" means a period of thirty (30) days from the date a Party receives written notice of a material breach, within which that Party may remedy the breach. The Cure Period is subject to amendment in accordance with Section 20.

1.5 "Deliverable" means any work product, document, software, report, or other material that Provider is required to deliver to Client under a Statement of Work.

1.6 "Qualifying Event" means the occurrence of three (3) or more Service Failures within any rolling period of thirty (30) days.

1.7 "Service Failure" means a failure by Provider to meet a Service Level in respect of any Service during a calendar month.

1.8 "Service Level" means a performance standard set out in **Schedule B (Fees and Service Levels)**, including the availability target, the response-time target, and the resolution-time target applicable to each Service.

1.9 "Services" means the services described in **Schedule A (Description of Services)** and in any Statement of Work executed under this Agreement.

1.10 "Statement of Work" or "SOW" means a written document executed by both Parties that describes specific Services, Deliverables, timelines, and fees, and that incorporates the terms of this Agreement by reference.

1.11 "Term" has the meaning given in Section 7.1.

Section 2. Scope of Services

2.1 Provider shall perform the Services described in Schedule A and in each executed Statement of Work, in accordance with the Service Levels set out in Schedule B.

2.2 Each Statement of Work shall be governed by the terms of this Agreement. In the event of a conflict between a Statement of Work and this Agreement, this Agreement shall prevail unless the Statement of Work expressly states that it overrides a specified provision of this Agreement and is signed by an authorised signatory of each Party.

2.3 Provider may engage subcontractors to perform any portion of the Services, provided that Provider remains fully responsible for the performance of its subcontractors and for compliance with this Agreement.

Section 3. Fees and Payment

3.1 Fees. Client shall pay Provider the fees set out in Schedule B. Fees are exclusive of applicable taxes, which shall be borne by Client.

3.2 Invoicing. Provider shall invoice Client monthly in arrears for Services performed in the preceding calendar month.

3.3 Payment Terms. Client shall pay each undisputed invoice within **thirty (30) days** of the invoice date. *(Note: this period was amended — see Amendment No. 1, Section 2.)*

3.4 Late Payment. Any undisputed amount not paid when due shall accrue interest at a rate of **one and one-half percent (1.5%) per month**, or the maximum rate permitted by applicable law, whichever is lower, calculated from the due date until the date of payment.

3.5 Disputed Amounts. Client may withhold payment of any amount it disputes in good faith, provided that Client notifies Provider in writing of the disputed amount and the basis for the dispute within fifteen (15) Business Days of the invoice date. Client shall pay all undisputed amounts in accordance with Section 3.3.

3.6 Fee Increases. Provider may increase the fees set out in Schedule B by not more than **five percent (5%)** per annum, effective on each anniversary of the Effective Date, upon not less than sixty (60) days' prior written notice to Client.

Section 4. Service Levels and Remedies

4.1 Provider shall perform the Services in accordance with the Service Levels set out in Schedule B.

4.2 Service Credits. Where Provider fails to meet a Service Level in any calendar month, Client shall be entitled to the service credits set out in Schedule B, Part 3. Service credits are Client's sole and exclusive financial remedy for a Service Failure, other than as set out in Section 4.3.

4.3 Qualifying Event. Upon the occurrence of a Qualifying Event, Client may, in addition to any service credits accrued, terminate the affected Statement of Work for cause by giving Provider written notice in accordance with Section 7.4, without any obligation to allow a Cure Period.

Section 5. Confidentiality

5.1 Each Party shall hold the other Party's Confidential Information in confidence and shall use a **reasonable degree of care** — being not less than the degree of care it uses to protect its own confidential information of a similar nature — to prevent its unauthorised disclosure.

5.2 Neither Party shall disclose the other Party's Confidential Information to any third party except to its employees, Affiliates, and professional advisers who have a need to know and who are bound by confidentiality obligations no less protective than those set out in this Section 5.

5.3 Survival. The obligations in this Section 5 shall survive the expiry or termination of this Agreement for a period of **five (5) years**.

5.4 Exclusions. The obligations in this Section 5 do not apply to information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was lawfully known to the receiving Party before disclosure; (c) is lawfully received from a third party without restriction; or (d) is independently developed without reference to the disclosing Party's Confidential Information.

Section 6. Intellectual Property

6.1 Pre-existing IP. Each Party retains all right, title, and interest in and to its intellectual property existing before the Effective Date or developed independently of this Agreement.

6.2 Deliverables. Subject to Client's payment of all amounts due, Provider assigns to Client all right, title, and interest in and to the Deliverables, excluding any Provider pre-existing intellectual property incorporated into a Deliverable.

6.3 Licence to Provider IP. Where a Deliverable incorporates Provider pre-existing intellectual property, Provider grants Client a non-exclusive, perpetual, worldwide, royalty-free licence to use that intellectual property solely as incorporated in and as necessary to use the Deliverable.

Section 7. Term and Termination

7.1 Term. This Agreement commences on the Effective Date and continues for an initial term of **two (2) years** (the "**Initial Term**"), expiring on **13 January 2028**, unless terminated earlier in accordance with this Section 7.

7.2 Renewal. Following the Initial Term, this Agreement shall automatically renew for successive periods of one (1) year each, unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

7.3 Termination for Convenience. Either Party may terminate this Agreement for convenience by giving the other Party not less than **sixty (60) days'** prior written notice, provided that no such notice may be given during the first twelve (12) months of the Initial Term. *(Note: this notice period was amended twice — see Amendment No. 1, Section 3 and Amendment No. 2, Section 1.)*

7.4 Termination for Cause. Either Party may terminate this Agreement with immediate effect by written notice to the other Party if the other Party: (a) commits a material breach of this Agreement and fails to remedy that breach within the Cure Period; (b) becomes insolvent, enters liquidation, or has a receiver appointed over any of its assets; or (c) ceases or threatens to cease to carry on business.

7.5 Effect of Termination. On expiry or termination of this Agreement: (a) Client shall pay Provider for all Services performed up to the effective date of termination; (b) each Party shall return or destroy the other Party's Confidential Information; and (c) Sections 5, 6, 8, 9, 13 and 15 shall survive.

Section 8. Limitation of Liability

8.1 Exclusion of Indirect Loss. Neither Party shall be liable to the other for any indirect, incidental, special, consequential, or punitive damages, or for any loss of profits, loss of revenue, loss of business, or loss of anticipated savings, howsoever arising, whether in contract, tort (including negligence), or otherwise.

8.2 Direct Loss. Each Party shall be liable to the other for direct losses arising from its breach of this Agreement, subject to the cap set out in Section 8.3.

8.3 Liability Cap. The aggregate liability of each Party under or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, shall not exceed **two million United States dollars (USD 2,000,000)** in aggregate over the life of this Agreement. *(Note: this cap was amended — see Amendment No. 2, Section 2.)*

8.4 Exclusions from Cap. The limitations in Sections 8.1 and 8.3 shall not apply to: (a) a Party's indemnity obligations under Section 9; (b) a breach of Section 5 (Confidentiality); (c) a Party's fraud or wilful misconduct; or (d) Client's obligation to pay fees properly due under Section 3.

Section 9. Indemnities

9.1 Provider Indemnity. Provider shall indemnify, defend, and hold harmless Client against all third-party claims, and all resulting losses, damages, costs, and reasonable legal fees, arising from a claim that a Deliverable infringes the intellectual property rights of a third party, provided that Client: (a) notifies

Provider promptly in writing of the claim; (b) gives Provider sole control of the defence and settlement; and (c) provides reasonable assistance at Provider's expense.

9.2 Client Indemnity. Client shall indemnify, defend, and hold harmless Provider against all third-party claims arising from Client's unlawful use of the Deliverables or from any material supplied by Client to Provider.

9.3 Exclusions. Provider has no obligation under Section 9.1 to the extent a claim arises from: (a) modification of a Deliverable by any person other than Provider; (b) combination of a Deliverable with materials not supplied by Provider; or (c) Provider's compliance with Client's written specifications.

Section 10. Data Protection

10.1 Each Party shall comply with all applicable data protection laws in connection with the performance of this Agreement.

10.2 Where Provider processes personal data on behalf of Client, Provider shall do so only in accordance with Client's documented instructions and shall implement appropriate technical and organisational measures to protect that personal data.

10.3 Breach Notification. Provider shall notify Client without undue delay, and in any event within **seventy-two (72) hours**, of becoming aware of any personal data breach affecting Client's personal data.

Section 11. Audit

11.1 Client may, not more than **once per calendar year**, audit Provider's compliance with this Agreement, on not less than **fifteen (15) Business Days'** prior written notice.

11.2 Audits shall be conducted during normal business hours, shall not unreasonably interfere with Provider's operations, and shall be at Client's cost, save where the audit reveals a material breach by Provider, in which case Provider shall bear the reasonable cost of the audit.

Section 12. Force Majeure

12.1 Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement to the extent that failure or delay results from an event beyond its reasonable control, including acts of God, war, terrorism, civil unrest, epidemic, governmental action, or failure of public infrastructure.

12.2 A Party affected by a force majeure event shall notify the other Party promptly and shall use reasonable endeavours to mitigate its effects. If a force majeure event continues for more than sixty (60) consecutive days, either Party may terminate this Agreement by written notice with immediate effect.

Section 13. Insurance

13.1 Provider shall maintain, throughout the Term and for two (2) years thereafter: (a) professional indemnity insurance with a limit of not less than **USD 1,000,000** per claim; and (b) commercial general liability insurance with a limit of not less than **USD 2,000,000** per occurrence.

13.2 Provider shall provide certificates of insurance to Client on request, and not more than once per calendar year.

Section 14. Notices

14.1 Form and Delivery. Any notice under this Agreement shall be in writing and shall be delivered: (a) by hand; (b) by internationally recognised courier; or (c) by electronic mail to the address set out in Schedule D (Notice Addresses), provided that notice of termination under Section 7 shall additionally be delivered by courier.

14.2 Deemed Receipt. A notice is deemed received: (a) if delivered by hand, on delivery; (b) if sent by courier, on the second Business Day after dispatch; and (c) if sent by electronic mail, on the next Business Day after transmission, provided no delivery failure notification is received.

Section 15. Governing Law and Dispute Resolution

15.1 Governing Law. This Agreement and any dispute arising out of or in connection with it shall be governed by and construed in accordance with the laws of **India**, without regard to its conflict of laws principles.

15.2 Jurisdiction. The courts located in **Chennai, Tamil Nadu** shall have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

15.3 Escalation. Before commencing proceedings, the Parties shall attempt in good faith to resolve any dispute by escalation to a senior executive of each Party for a period of thirty (30) days.

Section 16. Assignment

16.1 Neither Party may assign or transfer this Agreement or any of its rights or obligations under it without the prior written consent of the other Party, such consent not to be unreasonably withheld, except that either Party may assign this Agreement to an Affiliate or to a successor in connection with a merger, acquisition, or sale of substantially all of its assets, on written notice to the other Party.

Section 17. Non-Solicitation

17.1 During the Term and for a period of twelve (12) months thereafter, neither Party shall directly solicit for employment any employee of the other Party who has been materially involved in the performance of this Agreement, save that general advertisements not targeted at such employees shall not constitute solicitation.

Section 18. Entire Agreement

18.1 This Agreement, together with its Schedules and any executed Statements of Work and Amendments, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior agreements, representations, and understandings, whether written or oral.

Section 19. Severability

19.1 If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be severed and the remaining provisions shall continue in full force and effect.

Section 20. Amendment

20.1 This Agreement may be amended only by a written instrument signed by an authorised representative of each Party and expressly stating that it amends this Agreement.

20.2 Where an Amendment replaces a provision of this Agreement, the replaced provision ceases to have effect from the effective date of that Amendment, and the Amendment governs. Where two or more Amendments address the same provision, the Amendment with the later effective date governs.

Schedules

The following Schedules form part of this Agreement and are set out in the document SCH-2026-014_Northwind_Schedules:

- **Schedule A** — Description of Services
 - **Schedule B** — Fees and Service Levels
 - **Schedule B-2** — Notice and Escalation Matrix
 - **Schedule C** — Holiday Calendar
 - **Schedule D** — Notice Addresses
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EXECUTED by the Parties on 14 January 2026.

For and on behalf of **Soft Suave Technologies Private Limited** Name: R. Anand — Title: Director

For and on behalf of **Northwind Logistics Private Limited** Name: Meera Krishnan — Title: Chief Operating Officer